



Cross-Reference:

Oak Park (Plat), Instrument # 2004-00023371

Oak Park, Declaration of Covenants, Instrument # 2004-00015200

FIRST AMENDMENT

to the

DECLARATION OF RESTRICTIVE COVENANTS
FOR OAK PARK SUBDIVISION

COMES NOW the Oak Park Homeowners Association, Inc., by its Board of Directors, on this 13 day of May, 2016, and states as follows:

WITNESSETH THAT:

WHEREAS, the residential community in Hendricks County, Indiana commonly known as Oak Park was established upon the recording of certain documents with the Office of the Recorder of Hendricks County, Indiana; and

WHEREAS, the Plat for Oak Park was recorded with the Office of the Recorder of Hendricks County, Indiana, on July 26, 2004, as **Instrument # 2004-00023371**; and

WHEREAS, the foregoing Plats contain covenants which run with the land, namely the Declaration of Restrictive Covenants for Oak Park Subdivision ("Declaration"), recorded in the Office of the Recorder of Hendricks County, Indiana, on May 14, 2004, as **Instrument # 2004-00015200**; and any amendments thereto, which state that by taking a deed to any Lot as set forth on the Plat for the Oak Park development, each owner will become a mandatory member of the Oak Park Homeowners Association, Inc., an Indiana nonprofit corporation ("Association"); and

89 -
29722

WHEREAS, the Association was incorporated pursuant to the above listed Declaration as a non-profit corporation pursuant to Articles of Incorporation ("Articles") filed with, and approved by, the Indiana Secretary of State on September 1, 2004; and

WHEREAS, Paragraph 26 of the Declaration states that the *"Covenants are to run with the land and shall be binding on all parties claiming under them for a period of twenty-five (25) years from the date that these Covenants are recorded, after which time said Covenants shall automatically be extended for successive periods of ten (10) years, unless an instrument signed by a majority of the then owners of the lots has been recorded agreeing to change said Covenants in whole or in part. However, at any time, an instrument signed by ALL owners of the lots in Oak Park may be recorded to change any covenant"*; and

WHEREAS, Indiana Code 32-25.5-3-9 states that the governing documents must include a provision that allows the owners to amend the governing documents at any time, from time to time, if the amendment is approved by the necessary number or percentage of owners required by the governing documents to approve an amendment (but by no more than 75%), and the amendment instrument is signed by the owners consenting to the amendment; and

WHEREAS, a majority of the owners in Oak Park have voted to amend the Declaration by ballot vote at a meeting held on April 25, 2016. There are forty-four (44) lot owners in Oak Park, and every amendment was approved by a vote of twenty-five (25) "yeas" to three (3) "nays", as evidenced by the ballots and signatures of the voting owners attached to this amendment as "Exhibit A"; and

WHEREFORE, in accordance with Paragraph 26 of the Declaration and IC 32-25.5-3-9, the owners in Oak Park now amend the Declaration as follows:

Paragraph 21(f) is added to the Declaration and reads as follows:

(f) Each time the ownership of a Lot in Oak Park is transferred, conveyed or otherwise changes ownership, a Reserve Fund Contribution from the incoming member/owner in the amount of one hundred dollars (\$100.00) is required and will be collected at the time the ownership is transferred. This contribution may not be deleted or waived by the Association or its directors. Further, the Association, its members, or directors may not reduce the Reserve Fund Contribution, but it may be increased subject to the approval of two-thirds (2/3) of the members voting on such increase at a duly called and constituted meeting called for that purpose. These contributions will be deposited in an account separate from the operating funds of the Association. Notwithstanding anything contained in this section or elsewhere in this Declaration, any sale or transfer of a Lot to a mortgagee pursuant to a foreclosure on its mortgage, a deed in-lieu of foreclosure, or a conveyance to any person at a public sale in the manner provided by law with respect to mortgage foreclosures, will not be subject to paying this Reserve Fund Contribution.

Paragraph 25 of the Declaration is amended to read as follows:

25. **ENFORCEMENT.** The provisions of the Declaration, Articles, Bylaws, and rules, regulations and architectural guidelines for Oak Park, including any amendments or modifications made to them, are binding and enforceable upon each and every Lot and Lot Owner in Oak Park. For any violation of the Declaration, Articles, Bylaws, or rules, regulations or architectural guidelines adopted by the Board or the Committee, each owner in violation may be subject to an action at law or in equity by the Association to enjoin the violation, or pursue any other relief or remedy as may be set forth in the Declaration, Articles, Bylaws or rules and regulations.

If the Association takes any action to enforce any provision or restriction in the Declaration, Articles, Bylaws, or properly adopted rules, regulations and architectural guidelines of the Association, including such acts as the preparing and sending of violation letters, towing of vehicles, self-help, or filing a legal action in the courts, then the Association will be entitled to reimbursement from the party or parties found to be in violation of a covenant, rule or guideline of all its costs and expenses, including reasonable attorney fees, administrative charges by a management agent, and court costs, for the enforcement action.

No delay or failure on the part of the Association or any owner to seek any available remedy regarding a violation of any provision of the Declaration or adopted rule of the Association will be a waiver by the Association or any owner (or an estoppel of that party to assert) any right available to him upon the occurrence, recurrence or continuation of a violation of the Declaration or rule adopted by the Association.

Paragraph 26 of the Declaration is amended to read as follows:

26. **TERM AND AMENDMENTS.** These Covenants are to run with the land and will be binding on all parties subject to them for twenty-five (25) years from the date the Covenants were recorded, and these Covenants will automatically be extended for successive ten (10) year periods, unless at any time a majority of all owners vote in favor of amending these Covenants at a duly called meeting of the membership or by a written instrument signed by the owners, except in cases where the owners are voting on transferring any of the common areas or dissolving the Association, which will require the approval of at least ninety-five percent (95%) of all owners.

All other provisions of the Declaration of Restrictive Covenants for Oak Park Subdivision remain unchanged;

The foregoing amendments will run with the land and will be binding upon all owners and upon the parties having or acquiring any right, title or interest, legal or equitable, in and to the real property or any part or parts thereof subject to these covenants.

[End of Amendment]

We certify that this First Amendment to the Declaration of Restrictive Covenants for Oak Park Subdivision was duly moved and passed by a majority of the owners in the Oak Park subdivision and that all of the legal requirements of Paragraph 26 and IC 32-25.5-3-9 have been followed.

OAK PARK HOMEOWNERS ASSOCIATION, INC.

William S. Munson 5/13/16
President Date

William S. Munson
Printed Name of Director

ATTEST:

Linda L. Shore May 13, 2016
Secretary Date

Linda L. Shore
Printed Name of Director

STATE OF INDIANA)
 marion)
COUNTY OF HENDRICKS)

Before me a Notary Public in and for said County and State, personally appeared William S. Munson and Linda L. Shore, the President and Secretary, respectively, of Oak Park Homeowners Association, Inc., who acknowledged execution of the foregoing First Amendment to the Declaration of Restrictive Covenants for Oak Park Subdivision and who, having been duly sworn, stated that the representations contained herein are true.

Witness my hand and Notarial Seal of this 13 day of May, 2016.

Micah Criscillies
Notary of Public – Signature

marion
County of Residence

Micah Criscillies
Printed

Feb. 24. 2022
Date Commission Expires



I hereby affirm, under the penalties for perjury, that I have taken reasonable care to redact each Social Security number in this document, unless required by law. –Scott A. Tanner

This document was prepared by and should be returned to:

Scott A. Tanner, TANNER LAW GROUP, 6125 S. East St., Suite A, Indianapolis, IN 46227

EXHIBIT A

BALLOTS

44 TOTAL LOTS

(Majority Required to Approve Amendments)

ADDITION OF PARAGRAPH 21(f)

25 "YES" VOTES

3 "NO" VOTES

(Amendment Passes)

AMENDMENT OF PARAGRAPH 25

25 "YES" VOTES

3 "NO" VOTES

(Amendment Passes)

AMENDMENT OF PARAGRAPH 26

25 "YES" VOTES

3 "NO" VOTES

(Amendment Passes)

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision? Yes

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved? Yes

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved? Yes

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Susan H. Ouster
Signature of Owner

4/18/16
Date

Susan H. Ouster
Printed Name of Owner

1020 Red Oak Drive
Address

BALLOT

"YES" means you think the Amendment <i>should</i> be approved. "NO" means you think the Amendment <i>should NOT</i> be approved.	YES	NO
Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?	X	
Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	X	
Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	X	

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.


Signature of Owner

5/3/16
Date

Brad Shaffer, member, Exodus 2006, LLC
Printed Name of Owner

1037 / 1017 / 1005 Red Oak Drive
Address

If you're mailing in or delivering your ballot, please send or deliver it to:

Oak Park Homeowners Association
779 Pin Oak Drive
Plainfield, IN 46168

BALLOT

"YES" means you think the Amendment *should* be approved.
 "NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

✓

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

✓

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

✓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Carol Stegemoller
 Signature of Owner

4-13-16
 Date

Carol Stegemoller
 Printed Name of Owner

1032 Red Oak Dr.
 Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

yes

✓

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

yes

✓

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

yes

✓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Shelley Sparks-Munson
Signature of Owner

4/24/16
Date

Shelley Sparks-Munson
Printed Name of Owner

1007 White Oak Dr.
Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

YES NO
✓
✓
✓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Signature of Owner

Date

Printed Name of Owner

Address



4-9-16

A L FREEDMAN



1025 RSW OAK PARK

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

☒ YES

☐ NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

[Handwritten signature]

✓

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

[Handwritten signature]

✓

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

[Handwritten signature]

✓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Wes Livingston
Signature of Owner

4/5/16
Date

Wes Livingston
Printed Name of Owner

779 Pin Oak
Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

yes

✓

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

yes

✓

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

yes

✓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

William S. Munson
Signature of Owner

4/25/16
Date

William S. Munson
Printed Name of Owner

1003 WHITE OAK Dr.
Address

BALLOT

"YES" means you think the Amendment <i>should</i> be approved. "NO" means you think the Amendment <i>should NOT</i> be approved.	YES	NO
Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?	X	
Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	X	
Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	X	

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Larry Good
Signature of Owner

May 2nd - 2016
Date

LARRY GOOD
Printed Name of Owner
1015 RED OAK DRIVE
1002 WHITE OAK DRIVE
1006 WHITE OAK DRIVE
1018 WHITE OAK DRIVE
Addresses

If you're mailing in or delivering your ballot, please send or deliver it to:

Oak Park Homeowners Association
779 Pin Oak Drive
Plainfield, IN 46168

BILL MUNSON
1003 WHITE OAK DRIVE
PLAINFIELD, IN 46168

"YES" means you think the Amendment <i>should</i> be approved. "NO" means you think the Amendment <i>should NOT</i> be approved.	YES	NO
Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?	✓	
Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	✓	
Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	✓	

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.


Signature of Owner

4/25/16
Date

Spencer Davis
Printed Name of Owner

1004 Red Oak Dr
Address

If you're mailing in or delivering your ballot, please send or deliver it to:

Oak Park Homeowners Association
779 Pin Oak Drive
Plainfield, IN 46168

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

NO



NO

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

yes

✓

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

yes

✓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Patricia R. Ponder
Signature of Owner

4/4/16
Date

PATRICIA R. PONDER
Printed Name of Owner

1012 Red Oak Dr
Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

yes ✓

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

no ✓

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

no ✓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Kimberly Crouch
Signature of Owner

4-23-16
Date

Kimberly Crouch
Printed Name of Owner

1023 White Oak Drive
Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

yes

YES

NO

X yes

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

X yes

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

X yes

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Paul R. Griffin

Signature of Owner

4/25/2016

Date

Paul Griffin

Printed Name of Owner

1014 White Oak Dr.

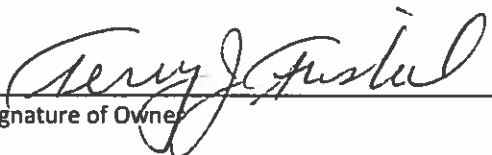
Address

BALLOT

"YES" means you think the Amendment <i>should</i> be approved. "NO" means you think the Amendment <i>should NOT</i> be approved.	YES	NO
Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?	✓	
Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	✓	
Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	✓	

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.



Signature of Owner

4/25/2016

Date

TERRY J. FISHEL

Printed Name of Owner

1035 WHITE OAK DR.

Address

If you're mailing in or delivering your ballot, please send or deliver it to:

Oak Park Homeowners Association
779 Pin Oak Drive
Plainfield, IN 46168

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

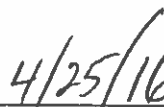
	YES	NO
Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?	Yes	
Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	Yes	
Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?	Yes	

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.



Signature of Owner


Date

NICHOLAS MILANO

Printed Name of Owner

1011 White Oak Drive

Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

✓

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

✓

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

✓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.


Signature of Owner

4-25-2016
Date

Jerry FISHEL
Printed Name of Owner

1030 WHITE OAK DR
Address

PLAINFIELD, IN 46168

BALLOT

"YES" means you think the Amendment *should* be approved.
 "NO" means you think the Amendment *should NOT* be approved.

☒ YES ☐ NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

↓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Larry Edwards
 Signature of Owner

4-25-16
 Date
 Lot 34

Larry Edwards
 Printed Name of Owner

1015 White Oak Drive
 Address

BALLOT

"YES" means you think the Amendment *should* be approved.
 "NO" means you think the Amendment *should NOT* be approved.

YES NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

yes

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

yes

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

yes

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.


 Signature of Owner

4/25/16
 Date

James E. Lockard
 Printed Name of Owner

1022 White Oak Drive
 Address

BALLOT

"YES" means you think the Amendment *should* be approved.
 "NO" means you think the Amendment *should NOT* be approved.

YES NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

✓

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

✓

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

✓

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Wesley Morgan
 Signature of Owner

4/25/16
 Date

Wesley Morgan
 Printed Name of Owner

1028 Red Oak Dr
 Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.



Signature of Owner

4/25/2016
Date

Brad Bernhardt

Printed Name of Owner

1041 Red Oak Dr.

Address

BALLOT

"YES" means you think the Amendment *should* be approved.
 "NO" means you think the Amendment *should NOT* be approved.

☒ YES ☐ NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

X

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

X

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

X

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Dan Clager
 Signature of Owner

4/25/16
 Date

Dan Clager
 Printed Name of Owner

1026 White Oak
 Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

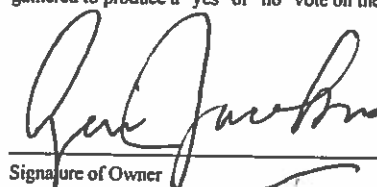
Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

yes
yes
yes

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.


Signature of Owner

4/24/16
Date

Gerri Jacobus
Printed Name of Owner

1019 White Oak Dr
Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.

Richard Grimes
Signature of Owner

4-5-16
Date

RICHARD GRIMES
Printed Name of Owner

1027 WHITE OAK DR.
Address

BALLOT

"YES" means you think the Amendment *should* be approved.

"NO" means you think the Amendment *should NOT* be approved.

YES

NO

Should the proposed Paragraph 21(f) (Reserve Fund Contribution) be added to the Declaration of Restrictive Covenants for Oak Park Subdivision?

Should the change to Paragraph 25 (Enforcement) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

Should the change to Paragraph 26 (Term and Amendments) of the Declaration of Restrictive Covenants for Oak Park Subdivision be approved?

According to Paragraph 26 of the Declaration of Restrictive Covenants and IC 32-25.5-3-9, the Declaration may be amended at any time if the amendment(s) is approved by a majority vote of the owners at a duly called meeting of the membership or by a written instrument signed by the owners. There are forty-four (44) Lot Owners in Oak Park. That means this proposed amendment would need to be approved by at least twenty-three (23) Lot Owners in Oak Park.

I certify that I am an owner of a lot within the Oak Park subdivision and am a member in good standing of Oak Park Homeowners Association, Inc. I have been given an opportunity to read the proposed amendment to the Declaration. I understand that this ballot needs to be received by the end of business on April 25, 2016, to be counted. However, if an insufficient number of ballots to approve/disapprove this amendment are returned by April 25, 2016, I authorize this ballot to be counted toward the approval/denial of this amendment for a period up to eighteen (18) months from the date this ballot is signed until enough votes are gathered to produce a "yes" or "no" vote on the amendment, or until I cease being an Owner in Oak Park, whichever occurs first.


Signature of Owner

23 APRIL 2016
Date

CHRIS & LINDA SHORE
Printed Name of Owner

787-PIN OAK DR.
Address
PLAINFIELD IN 46168